AXCELUS FINANCIAL LIFE INSURANCE COMPANY

ACCREDITED INVESTOR / QUALIFIED PURCHASER SUPPORTING QUESTIONNAIRE DELIVERED BY AN ENTITY

The undersigned, ____, on behalf of ________________________________ (the "Supporting Entity"), is furnishing the information in this Questionnaire to Axcelus Financial Life Insurance Company ("Axcelus Financial") so that Axcelus Financial can determine whether __________________________ (the "Proposed Owner") is an accredited investor, pursuant to section 4(a)(2) of the Securities Act of 1933, as amended (the "Act"), and Regulation D promulgated thereunder, and a Qualified Purchaser, pursuant to Section 2(a)(51) of the Investment Company Act of 1940 (the "Investment Company Act"), and Rule 2a51-1 promulgated thereunder ("Qualified Purchaser").

This Questionnaire is provided in conjunction with the offer and sale by Axcelus Financial of a Flexible Premium Deferred Variable Annuity Policy or Flexible Premium Variable Life Insurance Policy (the "Policy") to be issued to the Proposed Owner.

The Supporting Entity understands that Axcelus Financial will rely upon this information for purposes of such determination, and that the Policy will not be registered under the Act in reliance upon, among other things, the exemption from registration provided by Section 4(a)(2) and Regulation D thereunder. The Supporting Entity further understands that the Policy will be issued only if the Owners (as defined in the Policy), and all other individuals making premium payments under the Policy (collectively referred to as "Purchasers") qualify as accredited investors (as defined in Regulation D) at the time application is made for the Policy.

ALL INFORMATION CONTAINED IN THIS QUESTIONNAIRE WILL BE TREATED CONFIDENTIALLY. The Supporting Entity agrees, however, that Axcelus Financial may present this Questionnaire to broker-dealers or selling agents acting on behalf of Axcelus Financial and to such other parties, and their respective counsel, as Axcelus Financial deems appropriate, if called upon to establish that the proposed offer and sale of the Proposed Owner's Policy is exempt from registration under the Act.

The Supporting Entity understands that this Questionnaire is merely a request for information. The Supporting Entity understands that <u>this Questionnaire is not an application or an offer to sell or a sale of the Policies</u> and that no sale will occur prior to the issuance of a Policy to Proposed Owner.

<u>PART I - ACCREDITED INVESTOR CERTIFICATION</u>- Check the box(es) that apply.

The Supporting Entity certifies that:

☐ it is an Accredited Investor because it is a bank as defined in section 3(a)(2) of the Securities Act of 1933 (the "Act") association or other institution as defined in section 3(a)(5)(A) of the Act whether acting in its individual or fiduciary capacity; a broker or dealer registered pursuant to section 15 of the Securities Exchange Act of 1934; an insurance company as defined in section 2(13) of the Act; an investment company registered under the Investment Company Act of 1940 or a business development company as defined in section 2(a)(48) of that Act; a Small Business Investment Company licensed by the U.S. Small Business Administration under section 301(c) or (d) of the Small Business Investment Act of 1958; a plan established and maintained by a state, its political subdivisions, or an agency or instrumentality of a state or its political subdivisions, for the benefit of its employees, and such plan has total assets in excess of $5,000,000; an employee benefit plan within the meaning of the Employee Retirement Income Security Act of 1974 and the investment decision is made by a plan fiduciary, as defined in section 3(21) of such Act, which is either a bank, savings and loan association, insurance company, or registered investment adviser, or if the employee benefit plan has total assets in excess of $5,000,000 or, if a self-directed plan, with investment decisions made solely by persons that are accredited investors; **<u>AND/OR:</u>**

☐ it is an Accredited Investor because it is a private business development company as defined in section 202(a)(22) of the Investment Advisers Act of 1940; **<u>AND/OR:</u>**

☐ it is an Accredited Investor because it is an organization described in section 501(c)(3) of the Internal Revenue Code, corporation, Massachusetts or similar business trust, or partnership, not formed for the specific purpose of acquiring the securities offered, with total assets in excess of $5,000,000; **<u>AND/OR:</u>**

☐ it is an Accredited Investor because it is a trust, with total assets in excess of $5,000,000, not formed for the specific purpose of acquiring the securities offered, whose purchase is directed by a sophisticated person, defined as having sufficient knowledge and experience in financial matters as to be capable of evaluating the merits and risks of the securities; **<u>AND/OR:</u>**

☐ it is an Accredited Investor because it is a trust with a bank trustee that directs the purchase of the Policy and makes all investment decisions for the trust; **<u>AND/OR</u>**

☐ it is an Accredited Investor because it is a family office, as defined in Rule 202(a)(11)(G)-1 under the Advisers Act, that has assets under management in excess of $5 million, is not formed for the specific purpose of acquiring the securities offered and has a person directing the prospective investment who has such knowledge and experience in financial and business matters so that the family office is capable of evaluating the merits and risks of the prospective investment; **<u>AND/OR</u>**

☐ it is an Accredited Investor because it is an entity in which all of the equity owners are Accredited Investors.

PART II – QUALIFIED PURCHASER CERTIFICATION

Definitions

PLEASE REVIEW EXHIBIT A FOR THE MEANINGS OF CERTAIN CAPITALIZED TERMS USED FOR COMPLETING THIS PORTION OF THE QUESTIONNAIRE.

Certification - Check the box(es) that apply.

☐ (a) The Supporting Entity certifies that it is a Qualified Purchaser because it is a Company that owns at least $5,000,000 in Investments and that is owned directly or indirectly by or for two or more natural persons who are related as siblings or spouse (including former spouses,) or direct lineal descendants by birth or adoption, spouses of such persons, the estates of such persons, or foundations, charitable organizations, or trusts established by or for the benefit of such persons ("Family Company"); **AND/OR:**

☐ (b) The Supporting Entity certifies that it is a Qualified Purchaser because it is a trust that is not covered by paragraph (a) above and that was not formed for the specific purpose of acquiring the securities offered, as to which the trustee or other persons authorized to make decisions with respect to the trust, and each settlor or other person who has contributed assets to the trust, is a Qualified Purchaser; **AND/OR:**

☐ (c) The Supporting Entity certifies that it is a Qualified Purchaser because it is a person, including a natural person or a Company, acting for its own account or the accounts of other qualified purchasers, who in the aggregate owns and invests on a discretionary basis, not less than $25,000,000 in Investments and is not formed for the purpose of making this investment or to facilitate individual investment decisions by its owners; **AND/OR:**

☐ (d) The Supporting Entity certifies that it is a Qualified Purchaser because it is a "Qualified Institutional Buyer" as defined in Rule 144A under the Securities Act, as that term is modified by the limitations imposed thereon by Rule 2a51-1(g)(1) under the Investment Company Act; **AND/OR:**

☐ (e) The Supporting Entity certifies that it is a Qualified Purchaser because it is a Company, regardless of the amount of its Investments, each of the beneficial owners of which is a Qualified Purchaser.

PART III - AGREEMENTS

1. The Supporting Entity understands and agrees that because the Policy is issued in reliance on the exemption from registration contained in Section 4(a)(2) of the Securities Act and Regulation D promulgated thereunder that such Policy may not be sold, assigned, pledged, hypothecated or otherwise transferred unless it is registered under the Securities Act or is exempt therefrom.

2. The Supporting Entity understands and agrees that in the event that at any time while the Proposed Owner's Policy is in force the Supporting Entity ceases to qualify or has reason to believe that the Supporting Entity no longer qualifies as an Accredited Investor or as a Qualified Purchaser, then the Supporting Entity shall immediately provide written notification to Axcelus Financial of such change in status or belief. The Supporting Entity understands and agrees that Axcelus Financial may refuse to accept any premium payment under any Policy if it reasonably believes that the Supporting Entity has ceased to qualify as an Accredited Investor and a Qualified

Purchaser at the time of such payment. The Supporting Entity also understands and agrees that, in the event that at any time during the duration of the Policy, Axcelus Financial reasonably believes that the Supporting Entity no longer qualifies as an Accredited Investor and Qualified Purchaser, then Axcelus Financial may, in its sole discretion, deem such Policy to be surrendered if Axcelus Financial believes that such action may be required or prudent to ensure that the offering continues to qualify for exemption under Section 4(a)(2) of the Securities Act and Regulation D, or that the separate accounts supporting the contracts can qualify for the exclusion from the definition of an "investment company" under Section 3(c)(7) of the Investment Company Act.

3. The Supporting Entity agrees to cooperate with Axcelus Financial and, from time to time, as requested by Axcelus Financial, the Supporting Entity will provide Axcelus Financial with any information and respond to all inquiries from Axcelus Financial that are reasonably necessary to satisfy Axcelus Financial that the Supporting Entity continues to qualify as an Accredited Investor and Qualified Purchaser during the duration of Proposed Owner's Policy.

PART IV - REPRESENTATIONS AND WARRANTIES

1. The Supporting Entity represents and warrants to Axcelus Financial that the information contained herein is complete and accurate as of the date shown below and may be relied upon by Axcelus Financial as of the date of any subsequent premium payment with the same force and effect as if made on and as of such date.

2. If the Supporting Entity owns, in whole or in part, an entity that will be an "Owner" of a Policy (as defined in the Policy), the Supporting Entity further represents and warrants to Axcelus Financial that:

   a. THE PROPOSED OWNER IS ACQUIRING A POLICY FOR INVESTMENT PURPOSES ONLY AND NOT WITH A VIEW TOWARDS RESALE OR DISTRIBUTION. THE SUPPORTING ENTITY IS ABLE TO BEAR THE ECONOMIC RISK OF AN INVESTMENT IN A POLICY FOR AN INDEFINITE PERIOD OF TIME. THE SUPPORTING ENTITY HAS ADEQUATE MEANS OF PROVIDING FOR ITS CURRENT NEEDS AND CONTINGENICES OUTSIDE OF THE POLICY. THE SUPPORTING ENTITY UNDERSTANDS AND ACCEPTS THE FULL NATURE AND RISK OF AN INVESTMENT BY THE PROPOSED OWNER IN A POLICY AND HAS SUBSTANTIAL EXPERIENCE IN MAKING INVESTMENT DECISIONS OF THIS TYPE. THE SUPPORTING ENTITY POSSESSES THE BUSINESS AND FINANCIAL EXPERENCE SO AS TO BE CAPABLE OF EVALUATING THE MERITS AND RISKS INVOLVED WITH THE PROPOSED OWNER'S PURCHASE OF A POLICY.

   b. The Proposed Owner is acquiring a Policy for its own account, not on behalf of another person, and not for the purpose of distributing, assigning, reselling or otherwise transferring such Policy, either directly or indirectly.

   c. The Policy was not offered to the Proposed Owner by means of publicly disseminated advertisements or sales literature, and that the Supporting Entity is not aware of any offers made to other persons by such means.

   d. The Supporting Entity acknowledges that it has received, carefully reviewed, understands and is familiar with the Private Placement Memorandum of Axcelus Financial describing the business of Axcelus Financial, the Policy and the Investment Account(s) available to the Proposed Owner.

   e. The Supporting Entity understands that the Private Placement Memorandum has not been filed with or reviewed by the United States Securities and Exchange Commission or any state securities commission because of

Axcelus Financial's determination as to the private or limited nature of the offering. The Supporting Entity further understands that Axcelus Financial is under no obligation to register the Policy.

PART V - INDEMNITY

The Supporting Entity hereby agrees to indemnify and hold harmless Axcelus Financial, and its officers, directors, agents and representatives from any and all damages, losses, costs and expenses (including reasonable attorney's fees) which they may incur by reason of its failure to fulfill any of the terms and conditions of this Questionnaire or its breach of any of its representations and warranties contained herein.

PART VI - ACKNOWLEDGEMENT

The Supporting Entity hereby acknowledges that, at a reasonable time prior to Proposed Owner purchasing the Policy, the Supporting Entity has had the opportunity to ask Axcelus Financial questions and to receive answers concerning the purchase of the Proposed Owner's Policy and to obtain any additional information that Axcelus Financial possessed or possesses (or can acquire without unreasonable effort or expense) that is necessary to verify the information provided regarding the Policy.

IN WITNESS WHEREOF, the Supporting Entity has read, understands and agrees to the foregoing statements and hereby certifies that the information set forth above is true and correct to the best of its information and belief as of the date set forth below.

____

By: ____

Name ____

Title: ____

Date: ____

EXHIBIT A

DEFINITIONS

For purposes of completing Part II of this Questionnaire, the following definitions shall apply to capitalized terms used therein:

(1) **Investments** – The term “Investments” means:

(a) Securities (as defined below), other than securities of an issuer that controls, is controlled by, or is under common control with, the Prospective Qualified Purchaser that owns such securities, unless the issuer of such securities is:

(i) An Investment Vehicle;

(ii) A Public Company; or

(iii) A company with shareholders’ equity of not less than $50 million (determined in accordance with generally accepted accounting principles) as reflected on the company’s most recent financial statements, *provided that* such financial statements present the information as of a date within 16 months preceding the date on which the Prospective Qualified Purchaser acquires the Policy;

(b) Real estate held for investment purposes that is not used by the Prospective Qualified Purchaser or a related person for personal purposes or as a place of business, or in connection with the conduct of the trade or business of the Prospective Qualified Purchaser or a related person, unless the principal business of the Prospective Qualified Purchaser is investing, trading or developing real estate. Residential real estate shall not be deemed to be used for personal purposes if deductions with respect to such real estate are not disallowed by Section 280A of the Internal Revenue Code.

(c) Commodity Interests held for investment purposes. A commodity Interest owned by the Prospective Qualified Purchaser who is engaged primarily in the business of investing, reinvesting or trading in commodity interests in connection with such business may be deemed to be held for investment purposes.

(d) Physical Commodities held for investment purposes. A Physical Commodity owned by the Prospective Qualified Purchaser who is engaged primarily in the business of investing, reinvesting or trading physical commodities in connection with such business may be deemed to be held for investment purposes.

(e) To the extent not Securities, Financial Contracts entered into for investment purposes.

(f) In the case of a Prospective Qualified Purchaser that is a Section 3(c)(7) Company, a company that would be an investment company but for the exclusion provided by Section 3(c)(1) of the Investment Company Act, or a commodity pool, any amounts payable to such Prospective Qualified Purchaser pursuant to a firm agreement or similar binding commitment pursuant to which a person has agreed to acquire an interest in, or make capital contributions to, the Prospective Qualified Purchaser upon the demand of the Prospective Qualified Purchaser.

(g) Cash and cash equivalents (including foreign currencies) held for investment purposes, including bank deposits, certificates of deposit, bankers acceptances and similar bank instruments held for investment purposes, and net cash surrender of an insurance policy.

(2) **Securities** – The term “Securities” means any note, stock, treasury stock, bond, debenture, evidence of indebtedness, certificate of interest or participation in any profit-sharing agreement, collateral-trust certificate, pre-organization certificate or subscription, transferable share, investment contract, voting-trust certificate, certificate of deposit for a security, fractional undivided interest in oil, gas, or other mineral rights, any put, call, straddle, option, or privilege on any security (including a certificate of deposit) or group or index of securities (including any interest therein or based on the value thereof), or any put, call, straddle, option, or privilege entered into on a national securities exchange relating to foreign currency, or, in general, any interest or instrument commonly known as a "security," or any certificate of interest or participation in, temporary or interim certificate for, receipt for, guarantee of, or warrant or right to subscribe to or purchase, any of the foregoing.

(3) **Investment Vehicle** – The term "Investment Vehicle" means an investment company, a company that would be an investment company but for the exclusions or exemptions provided by Section 3(c)(1) through 3(c)(9) of the Investment Company Act, or the exemptions provided by Rules 3a-6 or 3a-7, or a commodity pool.

(4) **Financial Contracts** – The term "Financial Contracts" means any arrangement that takes the form of an individually negotiated contract, agreement, or option to buy, sell, lend, swap, or repurchase, or other similar individually negotiated transaction commonly entered into by participants in the financial markets; is in respect of securities, commodities, currencies, interest or other rates, other measures of value, or any other financial or economic interest similar in purpose or function to any of the foregoing; and is entered into in response to a request from a counter party for a quotation, or is otherwise entered into and structured to accommodate the objectives of the counter party to such arrangement, entered into for investment purposes. A financial contract entered into by the Prospective Qualified Purchaser who is engaged in the business of investing, reinvesting or trading in financial contracts in connection with such business may be deemed to be held for investment purposes.

(5) **Company** – The term "Company" includes a corporation, partnership, association, joint-stock company, a trust or a fund, except that a company that would, but for the exceptions provided for in paragraph (1) or (7) of Section 3(c) of the Investment Company Act, be an investment company ("excepted investment company") does not meet the definition of Qualified Purchaser, unless all beneficial owners of its outstanding securities (other than short-term paper), determined in accordance with Section 3(c)(1)(A), that acquired such securities on or before April 30, 1996 ("pre-amendment beneficial owners") and all pre-amendment beneficial owners of any excepted investment company that, directly or indirectly, owns any outstanding securities of such excepted investment company, have consented to its treatment as a Qualified Purchaser. Unanimous consent of all trustees, directors or general partners of a company or trust referred to in paragraph IV (b) or IV (c) below shall constitute consent for purposes of this paragraph.

(6) **Public Company** – The term "Public Company" means a company that: (i) files reports pursuant to Section 13 or 15(d) of the Securities Exchange Act of 1934; or (ii) has a class of securities that are listed on a "designated offshore securities market" as such term is defined by Regulation S under the Securities Act.

(7) **Section 3(c)(7) Company** – The term "Section 3(c)(7) Company" means:

(a) Any issuer, the outstanding securities of which are owned exclusively by persons, who, at the time of acquisition of such securities, are qualified purchasers (including persons who received the securities from a qualified purchaser as a gift or bequest, or in a case in which the transfer was caused by legal separation, divorce, death or other involuntary event), and which is not making and does not at that time propose to make a public offering of such securities; or

(b) an issuer whose outstanding securities, in addition to qualified purchasers, are beneficially owned by not more than 100 persons who are not qualified purchasers, if:

(i) such persons acquired any portion of the securities of such issuer on or before September 1, 1996; and

(ii) at the time at which such persons initially acquired the securities of such issuer, the issuer was an issuer whose outstanding securities (other than short-term paper) are beneficially owned by not more than one hundred persons and which is not making and does not presently propose to make a public offering of its securities.

For purposes of this paragraph, Beneficial Ownership by a company shall be deemed to be beneficial ownership by one person, except that, if the company owns 10 per centum or more of the outstanding voting securities of the issuer, and is or, but for one of the exceptions provided for in this paragraph, would be an investment company, the beneficial ownership shall be deemed to be that of the holders of such company's outstanding securities (other than short-term paper). Beneficial ownership by any person who acquires securities or interests in securities of an issuer described in this paragraph shall be deemed to be beneficial ownership by the person from whom such transfer was made where the transfer was caused by legal separation, divorce, death or other involuntary event.